

Mr Stephane Jacquet
13 Powys Avenue
Leicester
LE2 2DQ

DE MONTFORT UN

25 FEB 2016

HUMAN RESOURCE

21 December 2015

Dear Mr Jacquet

I have the pleasure of offering you the post of Part Time Lecturer, in the employ of De Montfort University. Your duties commenced on 5 October 2015.

This employment is for an indefinite period and this contract will cover all duties you will undertake for the university in the capacity of Part Time Lecturer.

It is a condition of your employment that you participate in any training or related activities the university considers necessary to fulfil the requirements of the post for your development.

I attach a written statement of the terms and conditions of your employment as at 21 December, 2015. I also enclose the following forms for you to complete and return, including the following:

Part-Time Lecturer's Claim Form

- Claim forms should be completed for the work done up to the 25th of the month and authorised by your Course/Subject Leader and Head of Department /School. **Please ask for the guidelines for submitting claims from your Faculty/Department Office.**
- Please ensure the authorised claim form reaches the individual responsible for processing claims in your Faculty/Department by the deadline date. The individual responsible will ensure that your claim is sent to payroll for processing by the payroll deadline date.
- Please ensure that claim forms are submitted within the same academic year as when the work was completed
- Payment will normally be made on the 25th of each month in arrears of your claim, with income tax and National Insurance deducted at the appropriate rate. Further Claim Forms can be obtained from your Faculty/Department Office.
- Please note that failure to adhere to procedures for submitting claims and deadline dates will result in non-payment until the following month.

• The total contract hours are stated on your contract and any additional record forms should not be exceeded as payment will not be made for hours claimed beyond those contracted.

If you wish to accept this offer, please sign one copy of this letter and one copy of the attached written statement and return both to the Human Resources Services Team in the envelope provided by **11 January 2016**, to indicate your formal acceptance. Upon receipt of your acceptance your details will be forwarded to the Payroll Department for processing.

I would like to take this opportunity to express the hope that you will continue to enjoy your work at the University and to wish you every success in your post.

Yours sincerely,

ppgs

for Vice-Chancellor and Chief Executive

I accept the post offered under the terms specified above and in the attached written statement which I have read and understood.

Signed:



Dated: 23/02/2016

Full Name: Mr Stephane Jacquet

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DE MONTFORT UNIVERSITY

CONTRACT

PART TIME, HOURLY PAID ACADEMIC STAFF

1 DMU is pleased to offer you an appointment as a Part Time Lecturer. This contract is for an indefinite period.

2 The Employer

De Montfort University.

3 The Employee

Mr Stephane Jacquet

4 Date of Commencement

The date of commencement of this contract is 5 October 2015 and it will continue until terminated in accordance with terms expressed in this contract.

5 Continuous Employment

Your date of commencement of continuous service at De Montfort University is 29 June 2015. Continuous service with other relevant higher and further education institutions in the United Kingdom will be counted in calculating sickness and maternity entitlements. Your date of continuous service for this purpose is 29 June 2015. In the case of redundancy, payment will be calculated in accordance with the Redundancy Payment (Local Government) (Modification) Order 1983 as amended.

6 Duties, Hours of Work and Remuneration

6.1 The hours of formal scheduled teaching specified in the attached schedule of work form the basis of remuneration in the first year of this contract and in subsequent years will not vary without agreement by more than 25% above or below this base figure. The salary paid is held to cover the time spent in necessary preparation of formally scheduled teaching, marking of students' work, and such other duties as are necessary to maintain the efficiency of the teaching.

6.2 The focus of your immediate work is that contained in your part time lecturers' schedule of work, however you may be required to undertake such other duties as are indicated on the Role Profile attached. You are expected to work flexibly and efficiently, and to maintain the highest professional standards in discharging your responsibilities, and in promoting and implementing the corporate policies of De Montfort University.

6.3 Any class contact, duties, or authorised attendance at the University, additional to that specified in the original schedule of work shall be arranged by mutual agreement between the lecturer and the employer. Any additional work will be paid at the appropriate rate.

6.4 Your hourly rate of pay of Hourly Paid Part-Time Lecturers is based on spinal point 31 of the Lecturers' Pay Scale. This is a comprehensive hourly rate which includes payment for teaching and all other duties undertaken as outlined in the role profile. Additionally, holiday pay is included in this rate (see section 8 below). The comprehensive teaching hourly rate is calculated by multiplying the hourly rate by 2.5

to include remuneration for all the work undertaken and holiday pay. This is in accordance with the Joint Negotiating Committee for Higher Education Staff Guidance on Pay for Hourly-Paid Lecturers in Post-92 Institutions. Payment of salary will be made one month in arrears by bank credit transfer on receipt of the official claim form duly completed and certified.

- 6.5 In determining the salary review the Board of Governors will refer to national recommendations arising from negotiations between UCEA (University and Colleges Employers' Association) and the recognised unions in respect of the New University Sector. Full details of the salary scales and their operation are set out in the National and Local Agreements Handbook (which forms part of this contract) and on the University's Intranet.
- 6.6 The work you are required to undertake in your first year of appointment is contained in the attached schedule of work which may be amended by mutual agreement during the year and which forms part of this contract.

The University is continually aiming to improve the service it offers to staff and at the same time help to reduce carbon emissions and improve sustainability. One of our initiatives has been to introduce electronic payslips. Your E- payslip will be made available online via the internal staff portal. You will need to enter your user name and unique password which will be given to you upon your commencement.

7 Working Year

Your teaching year will not normally exceed 38 weeks. You will not normally be required to teach for more than 30 weeks of any academic year – these weeks may not be consecutive. In exceptional circumstances this may be extended by up to two weeks of the year to participate in teaching-related administration.

8 Holidays

- 8.1 The University's holiday year runs from 1st September to 31st August. Holiday entitlement for staff working a 5 day week over the full year is 35 days. In addition, the University is closed on 8 Bank Holidays plus a further 5 discretionary days. You are entitled to a pro-rata amount of paid Holiday.
- 8.2 Holiday pay is in accordance with 6.4 above. For calculation purposes only, the holiday pay elements of the comprehensive hourly rate is 0.15%.
- 8.3 All of your paid holiday entitlement will be deemed to be taken on days when no work is undertaken during the period covered by each pay claim. No additional payment will be made when holiday is taken.

9 Research and Scholarly Activity

- 9.1 As part of your normal duties you would be expected to keep abreast of current thinking and advances to your particular academic discipline, this will be self-managed. This will include reflecting on practice and the development of own teaching and learning skills.

10 Staff Appraisal

In relation to the performance of your duties you will be required to participate in an appraisal scheme approved by the Board of Governors which is contained in the National and Local Agreements Handbook and on the University's Intranet.

11 Sickness

Subject to the provisions of the Sick Pay and Sick Leave Scheme, you are contractually entitled to time off with pay if you are absent from work during the agreed period of work due to illness or injury. Full details of your entitlements are set out in the National and Local Agreements handbook and on the University's Intranet site

12 Maternity, Paternity and Adoption Leave

Contractual entitlement to maternity, paternity and adoption leave is in accordance with the procedures contained in the National and Local Agreements handbook and on the University's Intranet site

13 Patents and Inventions

This section applies only to inventions brought into existence pursuant to this contract.

- 13.1 The provisions of sections 39, 40, 41, 42 and 43 of the Patents Act 1977 relating to the ownership of employees' inventions and the compensation of employees for certain inventions are acknowledged by the University and by you.
- 13.2 You agree that by virtue of the nature of your duties and the responsibilities arising from them you have a special obligation to further the interests of the University.
- 13.3 Any matter or thing capable of being patented under the Patents Act 1977, made, developed or discovered by you either alone or in concert, whilst in the performance of your normal duties, duties specifically assigned to you or arising out of anything done by you to which paragraph 13.2 applies, shall forthwith be disclosed to the University and subject to the provision of the Patents Act shall belong to and be the absolute property of the University.
- 13.4 You shall (and notwithstanding the termination of your employment) sign and execute all such documents and do all such acts as the University may reasonably require:
 - 13.4.1 To apply for and obtain in the sole name of the University (unless it otherwise directs) patent registered design or other protection of any nature whatsoever in respect of the inventions in any country throughout the world and, when so obtained or vested, to renew and maintain the same;
 - 13.4.2 To resist any objection or opposition to obtaining, and any petitions or applications for revocation of, any such patent, registered design or other protection;
 - 13.4.3 To bring any proceedings for infringement of any such patent, registered design or other protection;
 - 13.4.4 The University hereby undertakes to indemnify you in respect of all costs, claims and damages, howsoever and wheresoever incurred, in connection with the discharge by you of any and all such requests under 13.4.1, 13.4.2 and 13.4.3
- 13.5 The University acknowledges section 7 and 42 of the Patents Act. In respect of any invention which belongs to the University by virtue of section 39 of the Patents Act, it shall be for the University in the first instance to decide whether to apply for patent or other protection.
- 13.6 In the event that the University decides not to apply for patent or other legal protection you have the right to be notified of that decision as soon as is reasonably practicable thereafter.

- 13.7 If, following such a decision by the University you wish to apply for Patent either yourself or with another you must first inform the University of your intention to do so. Within a reasonable period of time following such notification the University must tell you whether it would object to your proposed application. The sole ground for such objection is that the patenting of the invention will involve or result in the disclosure to third parties of trade secrets or other confidential information belonging to the University and that such disclosures may damage the interests of the University.
- 13.8 Where the University objects under 13.7 you hereby undertake in consideration of the Payment of compensation to be determined under 13.9 below not to proceed to apply for patent of the invention concerned nor to assist any other person to do so.
- 13.9 The calculation of compensation referred to above shall have regard to those factors set out in section 41 of the Patents Act. In the event that the University cannot agree the amount of compensation, it shall be competent for either you or the University to apply to the president of the Law Society to appoint an arbitrator under the terms of the Arbitration Act, whose decision shall be binding.

14 Confidential Information

- 14.1 You shall not, except as authorised by the University or required by your duties hereunder, use for your own benefit of gain or divulge to any persons, firm, company or other organisations whatsoever any confidential information belonging to the University or relating to its affairs or dealings which may come to your knowledge during your employment. This restriction shall cease to apply to any information or knowledge which may subsequently come into the public domain other than by way of unauthorised disclosure.
- 14.2 Notwithstanding the above the University affirms that academic staff have freedom within the law to question and test received wisdom, and to put forward new ideas and controversial or unpopular opinions, without placing themselves in jeopardy of losing their jobs and privileges they have at the University.
- 14.3 All confidential records, documents and other papers (together with any copies or extracts thereof) made or acquired by you in the course of your employment shall be the property of the University and must be returned to it on the termination of your employment.
- 14.4 Confidential information must be determined in relation to individual employees according to their status, responsibilities and the nature of their duties. However it shall include all information which has been specifically designated as confidential by the University and any information which relates to the commercial and financial activities of the University, the unauthorised disclosure of which would embarrass, harm or prejudice the University. It does not extend to the information already in the public domain, unless such information arrived by unauthorised means.

15 Copyright

- 15.1 This section applies only to works or designs compiled, edited or otherwise brought into existence pursuant to this contract.
- 15.2 All records, documents and other papers (including copies and summaries thereof) which pertain to the finance and administration of the University and which are made or acquired by you in the course of your employment shall be the property of the University. The copyright in all such original records, documents and papers shall at all times belong to the University.

- 15.3 The copyright in any work or design compiled, edited or otherwise brought into existence by you as a scholarly work produced in furtherance of your professional career shall belong to you; 'scholarly work' includes items such as books, contributions to books, articles and conference papers, and shall be construed in the light of the common understanding of the phrase in higher education.
- 15.4 The copyright in any material produced by you for your personal use and reference, including as an aid to teaching, shall belong to you.
- 15.5 However, the copyright in course materials produced by you in the course of your employment for the purposes of the curriculum of a course run by the University and produced, used or disseminated by the University shall belong to the University, as well as the outcomes from research specifically funded and supported by the University.
- 15.6 The above sub-clauses 15.3 to 15.5 shall apply except where agreement to the contrary is reached by you and the University. Where a case arises, or it is thought that a case may arise, where such agreement to the contrary may be necessary, or where it may be expedient to reach a specific agreement as to the application of the above sub-clauses to the particular facts of the case, the matter should be taken up between you and your Head of Department. By way of example, this sub-clause would apply where any question of assignment of copyright or of joint copyright may arise; other examples and guidance may be contained from time to time in the National and Local Agreements Handbook and on the University's Intranet.
- 16 Pension**
- 16.1 If you are between the ages of 18 and 75 you are eligible for membership of the Teachers' Pensions Scheme (TPS) and you will be automatically opted in to the scheme. Full details are available on their website www.teacherspensions.co.uk
- 17 Probationary Period**
- N/A
- 18 Discipline**
- 18.1 Details of the disciplinary rules and procedures are included on the University's Intranet.
- 19 Grievance**
- 19.1 If you have a grievance relating to your employment you are entitled to make use of the Grievance Procedure which is explained on the University's Intranet.
- 20 Notice Period**
- Your appointment shall be terminable, except in the case of probation or dismissal for gross misconduct, by you giving the University two months' notice in writing or by the University giving you three months' notice in writing.
- 21 Representation**
- You have a right to join a Trade Union and to take part in its activities. Details of the Trade Union(s) representing you are available on the University's Intranet.

22 Health and Safety at Work

Your attention is drawn to the University's Policy on Health and Safety at Work. The Dean of Faculty or Head of Support Department will have a copy of this policy which is also available in the main University libraries and on the University's Intranet. You should also familiarise yourself with the Faculty Statement of Safety Organisation (SOSO) which is available in the Faculty Office and the University's intranet.

23 Equal Opportunities Policy

The University's Statement of Equal Opportunities Policy in Employment is sent out to all new members of staff. It is essential that you read this document carefully as you will be expected, as a University employee, to carry out your duties and responsibilities under the terms set out in the Statement. The full University Equal Opportunities Policy is available from the Human Resources Team in booklet form or is included on the University's Intranet.

24 Collective Agreements

Your terms and conditions are also directly affected by the following agreements between De Montfort University and the Trade Unions which it recognises.

DMU, NATFHE, AUT	Disciplinary procedure for teaching staff	10.1999
DMU, NATFHE, AUT	Grievance procedure for teaching staff	11.2007
DMU, NATFHE, AUT	Policy and Procedure for the termination of part time (hourly paid) lecturers due to redundancy	06.1995
DMU, NATFHE	Agreement on part time lecturer's contracts (blue contracts)	05.2009
DMU, NATFHE, AUT	Non-Contractual Payments to Part-Time Lecturers	09.2000
DMU, NATFHE, AUT	Probation, Support, Review & Guidance procedure for employees serving a probationary period	12.2001

Note: Agreements made with NATFHE and/or AUT have been inherited by UCU (University and College Union)

25 Variation

Any agreements reached in future as a result of national or local negotiations between the employer(s) and the recognised unions in respect of Hourly Paid Lecturers in Higher Education shall, after adoption by the Board of Governors, be automatically incorporated into your contract and will take precedent over any clause in this agreement.

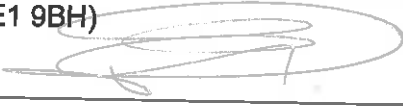
This contract may be varied with the agreement of both parties.

Yours sincerely,



for Vice-Chancellor and Chief Executive

I accept the conditions as set out above. (Please sign **both** copies of this contract and return **one** copy to Human Resources, Eric Wood Building, The Gateway, De Montfort University, Leicester, LE1 9BH)

Signed:  (Part Time Lecturer)

Date: 23/02/2016

LEVEL 2	TEACHING AND RESEARCH
(Lecturer or Research Fellow on Lecturer scale)	
1 Teaching and learning support	• Teach as a member of a teaching team in a developing capacity within an established programme / course of study, with the assistance of a mentor if required. • Teach in a developing capacity in a variety of settings from small group tutorials to large lectures. • Transfer knowledge in the form of practical skills, methods and techniques. • Identify learning needs of students and define appropriate learning objectives. • Ensure that content, methods of delivery and learning materials will meet the defined learning objectives. • Develop own teaching materials, methods and approaches with guidance • Develop the skills of applying appropriate approaches to teaching, • Challenge thinking, foster debate and develop the ability of students to engage in critical discourse and rational thinking. • Supervise the work of students, provide advice on study skills and help them with learning problems. • Select appropriate assessment instruments and criteria, assess the work and progress of students by reference to the criteria and provide constructive feedback to students. • Seek ways of improving performance by reflecting on teaching design and delivery and obtaining and analysing feedback.
2 Research and scholarship	• Develop research objectives and proposals for own or joint research. • Conduct individual and collaborative research projects. • Write up research work for publication. • Continually update knowledge and understanding in field or specialism. • Translate knowledge of advances in the subject area into the course of study.
3 Communication	• Deal with routine communication using a range of media. • Communicate complex information, orally, in writing and electronically. • Preparing proposals and applications to external bodies, eg for funding and accreditation purposes. • Communicate material of a specialist or highly technical nature.
4 Liaison and networking	• Liaise with colleagues and students. • Build internal contacts and participate in internal networks for the exchange of information and to form relationships for future collaboration. • Join external networks to share information and ideas.

5 Managing people	• Agree responsibilities. • Manage own teaching, research and administrative activities, with guidance if required. • Could be expected to supervise post-graduate students. • Act as a mentor for students in capacity of personal tutor.
6 Teamwork	• Collaborate with academic colleagues on programme/course development and curriculum changes. • Attend and contribute to subject group meetings. • Collaborate with colleagues to identify and respond to students' needs.
7 Pastoral care	• Use listening, interpersonal and pastoral care skills to deal with sensitive issues concerning students and provide support. • Appreciate the needs of individual students and their circumstances. • Act as personal tutor, giving first line support. • Refer students as appropriate to services providing further help.
8 Initiative, problem-solving and decision-making	• Develop initiative, creativity and judgement in applying appropriate approaches to teaching and learning support and research activities. • Respond to pedagogical and practical challenges. • Share responsibility in deciding how to deliver modules and assess students. • Contribute to collaborative decision making with colleagues on academic content, and on the assessment of students' work.
9 Planning and managing resources	• Use teaching and research resources, laboratories and workshops as appropriate. • Plan and manage own teaching and tutorials as agreed with mentor.
10 Sensory, physical and emotional demands	• Sensory and physical demands will vary from relatively light to a high level depending on the discipline and the type of work and will involve carrying out tasks that require the learning of certain skills. • Balance with help the competing pressures of teaching, scholarship, research and administrative demands and deadlines.
11 Work environment	• Is required to be aware of the risks in the work environment and their potential impact on their own work and that of others.
12 Expertise	• Possess sufficient breadth or depth of specialist knowledge in the discipline to work within established teaching and research programmes or courses. • Engage in continuous professional development. • Able to engage the interest and enthusiasm of students and inspire them to learn. • Develop familiarity with a variety of strategies to promote and assess learning. • Understand equal opportunity academic content and diversity issues relating to student need.